

BEFORE THE IOWA BOARD OF PSYCHOLOGY

IN THE MATTER OF

**CARA HALE (formerly Cara
Armstrong),**

RESPONDENT

Case No. 12-005

NOTICE OF HEARING AND
STATEMENT OF CHARGES

COMES NOW the Iowa Board of **Psychology** (Board) and files this Notice of Hearing and Statement of Charges pursuant to Iowa Code sections 17A.12(2), 17A.18(3), and 645 Iowa Administrative Code (IAC) 11.6. Respondent was issued Iowa license 001044 on August 21, 2007. Respondent's license is current and will next expire on June 30, 2014. Respondent's address as reported to the Board is [REDACTED] Fresno, California 93737.

A. TIME, PLACE AND NATURE OF HEARING

Hearing. A disciplinary contested case hearing shall be held on **February 15, 2013**, before the Board of Psychology. The hearing shall begin at **9:00 a.m.** and shall be located in the Lucas State Office Building, Fifth Floor Board Conference Room 526, Des Moines, Iowa.

Answer. Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges you are required by 645 IAC 11.12 to file an Answer. The Answer should specifically admit, deny, or otherwise answer all allegations contained in sections C and D of this Notice of Hearing and Statement of Charges. Pleadings shall be filed with the Board at the following address: Board of Psychology, 5th Floor, Lucas State Office Building, Des Moines, Iowa, 50319.

Presiding Officer. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge make initial rulings on pre-hearing matters, and

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be present to assist and advise the board at hearing.

Hearing Procedures. The procedural rules governing the conduct of the hearing are found at 645 IAC chapter 11. At hearing, you may appear personally or be represented by legal counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at hearing. If you need to request an alternative time or date for hearing, you must comply with the requirements of 645 IAC 11.18. The hearing may be open to the public or closed to the public at your discretion.

Pre-hearing Conference. Any party may request a pre-hearing conference to discuss evidentiary issues related to the hearing. The Board's rules regarding pre-hearing conferences are contained at 645 IAC 11.17.

Prosecution. The Office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of pleadings should be provided to counsel for the State at the following address: September Lau, Assistant Attorney

General, Iowa Attorney General's Office, 2nd Floor, Hoover State Office Building, Des Moines, Iowa 50319.

Communications. You may not contact Board members in any manner, including by phone, letter, or e-mail, about this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and an opportunity to participate, such as at the hearing or in pleadings you file with the Board office and serve upon all parties in the case.

B. LEGAL AUTHORITY AND JURISDICTION

Jurisdiction. The Board has jurisdiction in this matter pursuant to Iowa Code Chapters 147, 154B, and 272C.

Legal Authority. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code Chapters 17A, 147, 154B, and 272C and 645 IAC chapter 242.

Default. If you fail to appear at the hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code Section 17A.12(3) and 645 IAC 11.21.

C. SECTIONS OF STATUTES AND RULES INVOLVED

Count I

Respondent is charged pursuant to Iowa Code section 147.55(9) and 645 IAC 242.2(30)(b) with improper sexual contact with or making suggestive, lewd, lascivious or improper remarks or advances to a coworker.

Count II

Respondent is charged pursuant to Iowa Code section 147.55(9) and 645 IAC 242.2(1) with failure to comply with the Ethical Principles of Psychologists and Code of Conduct. Specifically, Respondent violated the following standards:

Standard 7.07 requiring psychologists to refrain from sexual relationships with students or supervisees who are in their department, agency, or training center;

Standard 3.02 requiring psychologists to refrain from sexual harassment;

Standard 3.05 requiring psychologists to refrain from entering into an impermissible multiple relationship; and

Standard 3.08 requiring psychologists to refrain from exploitative relationships with persons over whom they have supervisory authority.

D. FACTUAL CIRCUMSTANCES

1. Respondent is licensed to practice as a psychologist in Iowa. Respondent's license is active and will expire on June 30, 2014.

2. Respondent was a senior staff psychologist at Iowa State University (ISU), and resigned from that position on May 4, 2012. The following facts took place while Respondent was employed as a senior staff psychologist at ISU.

3. As a part of her job responsibilities, Respondent supervised practicum and intern students. All senior staff members were responsible for mentoring, supervising, and evaluating students.

4. Respondent supervised and mentored a male graduate assistant, M.S.¹ Respondent co-lead group therapy sessions with M.S. and evaluated him.²

5. Respondent had a sexual relationship with M.S. while M.S. was under Respondent's supervision.

6. Respondent supervised and mentored a female graduate student, F.S.³ Respondent's husband was one of F.S.'s professors at ISU. While supervising F.S., Respondent confided information about her personal life to F.S., including personal information about Respondent's husband.

7. Another intern in the ISU psychology program reported to psychology program directors at ISU that she was offended by a sexual comment Respondent made

¹ The student will be referred to as M.S. to protect his identity.

² Respondent was not M.S.'s primary supervisor, but provided supervision and mentoring to him during the group therapy sessions.

³ The student will be referred to as F.S. to protect her identity.

about the intern's husband.

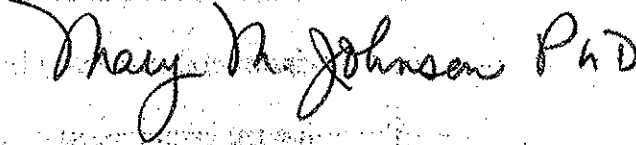
8. Respondent's supervisors at ISU filed a complaint about her boundary issues.

E. SETTLEMENT

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC chapter 12. If you are interested in pursuing settlement of this matter, please contact September Lau, Assistant Attorney General, at 515/281-7175.

F. PROBABLE CAUSE FINDING

On this 3rd day of January, 2013, the Iowa Board of Psychology found probable cause to file this Notice of Hearing and Statement of Charges.

A handwritten signature in black ink that reads "Mary M. Johnson PhD". The signature is written in a cursive style.

Chairperson
Iowa Board of Psychology

Copies to:

September Lau
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor Hoover Bldg.
Des Moines, IA 50319

Cara Hale